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Case Number: 24BBCV00238 Hearing Date: August 14, 2026 Dept: A

TENTATIVE RULING

AUGUST 14, 2026

MOTION FOR ATTORNEY's FEES,
COSTS, and EXPENSES

Los

Angeles Superior Court Case # 24BBCV00238

MP: Plaintiffs

Lee Nguyen and Tiffany Nguyen

RP: Defendant General Motors LLC

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Lee Nguyen and Tiffany Nguyen ("Plaintiffs") allege that on May 19, 2022, they purchased a 2022 Chevrolet Silverado 1500, which was accompanied by express and implied warranties from General Motors LLC ("Defendant"). Plaintiffs assert that the vehicle was delivered with serious defects and nonconformities to the warranty. Plaintiffs claim that despite a reasonable number of repair attempts, Defendant was unable to conform the vehicle to applicable warranties.

The Complaint, filed January 29, 2024, alleges causes of action for: (1) Song-Beverly Act – Breach of Implied Warranty of Merchantability; (2) Song-Beverly Act – Breach of Express Warranty; and (3) Song-Beverly Act – Violation of Civil Code, § 1793.2(d)(2).

On September 19, 2025, Plaintiffs filed a Notice of Conditional Settlement of Entire Case.

On November 18, 2025, the Court dismissed the complaint without prejudice, pursuant to C.C.P. § 644.6(f).

MOTION ON CALENDAR:

On May 1, 2026, Plaintiffs filed a Motion for Attorney's Fees, Costs, and Expenses. On July 31, 2026, Defendant filed an opposition. On August 7, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A prevailing party in an action under the Song-Beverly Act may be entitled to reasonable attorney's fees. (Civ. Code § 1794(d); see also C.C.P. § 1032(a)(4).) The calculation of attorney's fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (Graciano v. Robinson Ford Sales (2006) 144 Cal.App.4th 140, 154; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th

785, 817-819.) Nonetheless, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) Thus, a prevailing buyer under the Song-Beverly Act has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.)

Once an attorney has presented evidence of their actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable, unless "special circumstances" render the award unjust. (Serrano v. Unruh (1982) 32 Cal.3d 621, 639.) An award of attorney fees may be based on counsel's declarations, without production of detailed time records. (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

The California Supreme Court has opined that an attorney should not receive a windfall relative to statutes which award attorney's fees. As such, "plaintiffs' counsel are not permitted to take contractual fees in addition to statutory fees: If the contingency fee is larger than the statutory fee award, counsel is permitted to accept that fee, with a setoff for statutory fees received. If the contingency fee is smaller than the statutory fee, counsel must reimburse the plaintiff from the statutory award for any amounts already paid by the client pursuant to the contingency contract." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 401 [citing Flannery v. Prentice (2001) 26 Cal.4th 572, 577].)

ANALYSIS:

Plaintiffs move for attorney's fees and costs in the amount of \$34,912.50 in attorney's fees, a 0.5 lodestar multiplier for \$17,456.25, and costs of \$674.50, for a total of \$53,043.25.

A.

Prevailing Party and Basis for Attorney's Fees

Plaintiffs argue that after 19 months of litigation, the parties reached a settlement via a 998 Offer of Compromise. Plaintiff's counsel Raymond Velarde includes a copy of Defendant's CCP § 998 Offer, which states in relevant part:

2.

GM will also pay Plaintiffs' attorney fees, expenses, and costs in the amount of \$10,000.00.

3.

Alternatively, at Plaintiffs' election, Plaintiff's attorney's fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion. For purposes of any such motion, GM will agree that Plaintiffs are the prevailing party.

4.

GM also agrees to pay pre-judgment interest pursuant to California Civil Code §§ 3287(b) and 3289(b). Interest shall be calculated from the date of the filing of this action through the date upon which this offer is accepted.

(Velarde Decl., Ex. 2 [998 Offer].)

Mr. Velarde states that on November 25, 2025, Defendant distributed the funds, after which Plaintiff's counsel continued negotiating attorney's fees and costs, but Defendant failed to negotiate fees and costs, leading to this motion. (Velarde Decl., ¶13.)

Based on the parties' 998 Offer and Civil Code, § 1794(d), there is a contractual and statutory basis for fees. The parties do not contest that Plaintiffs are the prevailing party and entitled to seek attorney's fees by motion.

B. Amount
of Reasonable Attorney's Fees

Plaintiffs
seek \$34,912.50 in attorney's fees.

The breakdown of Plaintiff's counsel's time is as follows:

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Raymond Velarde (Managing Owner and Principal at Lemon Law Man APC, admitted 2016): 30.3 hours at \$525/hour for \$15,907.50. (Velarde Decl., ¶¶1, 3-5, Ex. 1 [Velarde's Billing Records].)

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Jacqueline Mandel (Associate Attorney, admitted 2017): 36.2 hours at \$525/hour for \$19,005. (Mandel Decl., ¶¶3-4, Ex. 1 [Mandel's Billing Records].)

1.

Hourly Rate

Defendant does not oppose the hourly rates sought by Plaintiffs' counsel but argues that the rates are sufficiently high such that a multiplier is not warranted. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1090 [rates determined by the Court].)

While the Court appreciates counsels' work on the matter, the Court reduces Ms. Mandel's hourly associate rate to \$450 as she has fewer years of experience. The Court will not reduce Mr. Velarde's \$525 hourly partner rate. Lemon law cases, such as this, typically are not highly sophisticated or complex matters, although the Court also understands that is not always the case.

From these revised rates, the Court will consider whether reductions to the hours billed are appropriate.

2.

Hours Billed

Defendant seeks a reduction of time for hours spent to review documents, prepare pleadings, prepare templated discovery requests and responses, meet and confer, prepare templated motions, and engage in administrative tasks. (Opp. at pp.4-6.)

The Court has reviewed Defendant's proposed reductions and makes the following reductions:

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February 29, 2024 to review the answer: Mr. Velarde and Ms.

Mandel each billed 0.2 and 0.4 hour, respectively to review the answer. The Court reduces Ms. Mandel's time only by 0.2 hour.

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March 7, 2024: Ms. Mandel spent 1.8 hour

reviewing/editing/drafting Plaintiff's discovery responses. Mr. Velarde spent

0.2 hour to review discovery responses served on Defendant by Ms. Mandel. The Court reduces Mr. Velarde's time only by 0.2 hour.

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On March 14 and 15, 2024, Mr. Velarde spent 2.4 hours

receiving and reviewing Defendant's discovery requests. On April 15, 2024, Ms. Mandel billed 5.4 to

draft and serve responses to Defendant's discovery requests. The Court reduces Mr. Velarde's 2.4 hours to

review the discovery requests as Ms. Mandel appears to have been the attorney preparing the responses.

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April 29, 2024: Mr. Velarde billed 1.8 to review

Defendant's discovery responses, while Ms. Mandel billed 0.9 hour to review the discovery responses. As this is

duplicative, the Court reduces Mr. Velarde's time by 1.8 hours.

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May 15 and 31, 2024: Ms. Mandel billed 1.5 hours to prepare

an eight-sentence meet and confer letter, which Mr. Velarde billed 0.2 hour

reviewing. Ms. Mandel and Mr. Velarde

billed 0.5 and 0.2 hour respectively to review Defendant's brief response. The Court reduces Mr. Velarde's 0.4 hour billed for his reviewing time.

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October 25, 2024 and December 2, 2024: Ms. Mandel spent 4

hours drafting a motion to compel Defendant's PMQ's deposition, and 0.5 hour

reviewing Defendant's opposition.

Defendant argues that the motion was unnecessary because the parties had

agreed to a deposition date such that only 1 hour should be awarded. According to the Court's December 13, 2024

Minute Order, the Court denied Plaintiffs' motion without prejudice for Plaintiffs'

failure to meet and confer. As the

motion was unnecessary without the good faith meet and confer prerequisite, the Court reduces Ms. Mandel's time by 3.5 hours.

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General client communications: Defendant argues that counsel billed approximately 12.1 hours total for client communications, client updates, conference calls, etc. The Court has reviewed the records and finds that the time billed appears excessive, and will make reductions of 4 hours of Mr. Velarde's time and 1 hour of Ms. Mandel's time.

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Conference calls: Mr. Velarde and Ms. Mandel each billed for time spent in conferences/meetings with the other. The Court will reduce Ms. Mandel's time only by 1 hour.

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Motion for Attorney's Fees: Ms. Mandel spent 2.7 hours drafting the motion and 2 hours finalizing the motion, and anticipates spending 0.5 hour to review the opposition, 2 hours for the reply, and 1.5 hour for the hearing, or 8.8 hours. The Court will make a modest reduction of 1 hour for Ms. Mandel's total time on this motion.

Based on the reduced hourly rates, the Court adjusts the total attorney's fees as follows:

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Raymond Velarde: 21.5 hours (= 30.3 requested hours minus 8.8-hour reduction) at \$525/hour for \$11,287.50

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Jacqueline Mandel: 29.5 hours (= 36.2 requested hours minus 6.7-hour reduction) at \$450/hour for \$13,275

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TOTAL: \$24,562.50

Accordingly, the Court is inclined to grant the motion for attorneys' fees in the amount of \$26,137.25.

3.

Lodestar Multiplier

Plaintiffs seek a 0.5

lodestar multiplier because counsel took

the case on a contingency basis, there was a risk that Plaintiff would not

prevail, counsel advanced all costs and expenses, and to account for the delay

in payment. (Mot. at pp.13-14; Velarde Decl., ¶16.) Total, Plaintiffs seek \$17,456.25 as a lodestar

enhancement (based on the requested \$34,912.50

attorney's fees amount).

The Court declines to award a multiplier as requested

by Plaintiffs. While the Court

recognizes that Plaintiff's counsel obtained a favorable outcome for their

clients, the Court declines to award a lodestar multiplier based on the facts

of this case, which did not amount to a complicated Song-Beverly case. The request for a multiplier is denied.

4.

Costs

The 998 Offer states that, at Plaintiffs' election, the

reasonable attorneys' fees, costs, and expenses shall be determined by the

Court by way of a noticed motion.

Plaintiffs request \$674.50 in costs and expenses.

In opposition, Defendant argues that Plaintiffs did not file

a memorandum of costs or any evidence to support their claimed costs, such that

all costs should be denied.

On May 1, 2026 (concurrently with this motion), Plaintiffs

filed a Memorandum of Costs seeking \$674.50 for: (1) \$615.35 in Filing and

Motion Fees; and (5) \$59.15 for Service of Process fees. The memorandum of costs is accompanied by

exhibits substantiating the requested costs.

According to the proof of service attached to Plaintiffs' notice of

motion, it states that the "Statement of Costs and Fees" was electronically

served on Defendant on May 1, 2026. The

Memorandum of Costs is not accompanied by a proof of service. (Evleshin v.

Meyer (2025) 115 Cal.App.5th 1021.)

As Plaintiff failed to timely file the Memorandum of Costs and serve the Defendant, the motion for costs is denied.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiffs Lee Nguyen and Tiffany Nguyen's Motion for Attorney's Fees, Costs, and Expenses came on regularly for hearing on August 14, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

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MOTION FOR ATTORNEY'S FEES IS GRANTED IN THE AMOUNT OF \$26,137.25. no memorandum of costs was timely filed and served; no costs are awarded.

Plaintiff LEE NGUYEN TO GIVE NOTICE.

IT IS SO ORDERED.